HEADNOTE

> *"For the unsuccessful party to be able to comment on both the necessity and the proportionality of the costs for representation, the applicant for a cost decision should provide a sufficiently substantiated specification of the costs in view of the circumstances of the case, which would generally include breakdowns corresponding to each service provided in relation to the case, the date on which such service was provided, and the number of hours and rate billed for that specific service. Exceeding the ceiling does not as such entitle a party to reimbursement of the ceiling set by the Administrative Committee pursuant to R.152.2 RoP."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Application for provisional measures

PATENT
EP 3 470 533

SYSTEMS AND METHODS TO DETECT COPY NUMBER VARIATION

KEYWORDS
reasonable and proportionate costs (Art. 6...
Substantiation of costs for representation (...

Rule 152 Compensation for representation costs

SUMMARY
The Court of Appeal Luxembourg ruled on an application for provisional measures. The patent at issue relates to systems and methods to detect copy number variation. According to the headnotes of the decision, parties seeking cost reimbursement must provide a sufficiently substantiated cost specification. This specification should include breakdowns for each service provided in relation to the case. Furthermore, the submission must identify the date of each service, the hours worked, and the rate billed. This enables the unsuccessful party to comment meaningfully on both necessity and proportionality. Additionally, exceeding the cost ceiling set by the Administrative Committee does not automatically entitle a party to reimbursement beyond that ceiling. This means that compliance with the established ceiling remains binding regardless of actual costs incurred.